

Sri Krishna Chikitsalaya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 December 2018 · WRIT - C No. - 41080 of 2018 · **Writ disposed of; petitioner relegated to Clause 6.5 for bill rectification.**

HEADNOTE

A writ seeking mandamus to the Executive Engineer to rectify an electricity bill, including surcharge, is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may apply to the appropriate authority under that clause; a timely application is to be decided by a speaking order after hearing.

FACTUAL SUMMARY

Sri Krishna Chikitsalaya approached the Allahabad High Court against the State of U.P. and the electricity department. It sought a mandamus commanding the Executive Engineer to decide its grievance for rectification of an electricity bill, including surcharge, under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner's case was that the bill raised against it was incorrect. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness statutory remedy

HOLDING

A writ seeking mandamus to the Executive Engineer to rectify an electricity bill, including surcharge, is not entertained where the consumer has the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may approach the appropriate authority under that clause; if the application is made within ten days, the authority is to consider and decide it in accordance with law by a speaking order after hearing, within thirty days of receiving a certified copy of the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND SURCHARGE

The Court did not examine the bill on merits and left the grievance to be decided under Clause 6.5. ¶ 1